

Court No. - 39

Case :- WRIT - C No. - 8363 of 2024

Petitioner :- Praveen Kumar

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Ajay Kumar Vashistha

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Surendra Singh-I,J.

1. Prima facie, it is difficult to acknowledge that respondent-Distribution Corporation has permanently disconnected the connection solely occasioned by the fact that there are certain disputes between the petitioner and his brothers.

2. Undeniably, the electricity connection was granted to the petitioner's father. Therefore, pending civil dispute between the petitioner and his brothers as to succession etc., the electricity connection may continue to exist subject to the petitioner furnishing adequate indemnity bond etc., and further subject to the petitioner continuing to deposit the amount of the bills that may be raised.

3. Sri Alok Mishra, learned counsel for the Distribution Corporation prays and granted 10 days time to obtain clear written instructions with respect to facts noted above.

4. Put up as fresh on 10.04.2024.

Order Date :- 14.3.2024

KS

(Surendra Singh-I,J.) (S.D. Singh,J.)

Court No. - 29

Case :- WRIT - C No. - 8363 of 2024

Petitioner :- Praveen Kumar

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Ajay Kumar Vashistha

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Vivek Kumar Birla,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

1. Heard Sri Ajay Kumar Vashistha, learned counsel for the petitioner as well as learned Standing Counsel for the State respondents and Sri Alok Mishra, learned counsel for the respondent no. 3-Corporation and perused the record.
2. Instructions dated 20.3.2024 filed today is taken on record.
3. Present petition has been filed challenging the order dated 6.2.2023 passed by the respondent no. 3. A prayer is also made to direct the authority concerned to re-connect the electric line/connection of the petitioner's tube well.
4. Although the correctness of the impugned order dated 6.2.2023 by which permanent disconnection has been directed, is being disputed on several grounds, however, after arguing the matter at length, both the parties agree that the petitioner may be set at liberty to apply for fresh connection as per the provisions of Electricity Supply Code, 2005.
5. Accordingly, present petition stands disposed of with liberty to the petitioner to apply for fresh connection in accordance with law, which shall be considered by the authority concerned, on its own merit in view of the assertion made in paragraph 18 of the petition, preferably within a period of three weeks from the date of filing of a certified copy of this order and no orders are required on the issue of correctness of the order impugned herein.

Order Date :- 10.4.2024

Abhishek